

23NWCV02826 23NWCV02826

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23NWCV02826 Hearing Date: August 14, 2026 Dept: P

Amaryllis Partners, LLC v. Baker Coupling Company, Inc., et al.,

23NWCV02826

This breach of lease action was filed on September 7, 2023. Trial is scheduled to begin on September 22, 2026. Plaintiff Amaryllis Partners, LLC (Plaintiff) has reserved four hearings for four Motions to Compel Depositions scheduled to be heard after trial, between February 23, 2027 and March 2, 2027. Plaintiff now applies ex parte to specially set the hearing dates of the four Motions to Compel Depositions so that they can be heard prior to the trial date.

In opposition, Defendants Falls Lake National Insurance Company and Evanston Insurance Company argue that Plaintiff has not met and conferred as required for the Motions to Compel Depositions. Defendants also note that Plaintiff seeks to compel answers to a deposition taken three days ago, in which the deposition transcript is not ready. (See Code Civ. Proc., § 2025.480, subd. (b), (h).) Defendants argue that this ex parte application should be denied or, alternatively, trial should be continued to allow the deposition transcript to be prepared and for the parties to meet and confer.

Defendants Lexington Insurance Company and Western World Insurance Company separately oppose and argue that the current trial date does not remain workable if Plaintiff obtains the late-stage discovery that it seeks through these motions. Defendants argue that Plaintiff is seeking to expand the scope of pretrial proceedings on the eve of trial.

Plaintiff's ex parte application to advance the four Motions to Compel Deposition is DENIED. The Court cannot accommodate four additional motions prior to the trial date. Moreover, the Court agrees with Defendants' arguments in the opposition that the parties are required to meet and confer and that a trial continuance may be necessary to accommodate the discovery sought now. Plaintiff is not foreclosed from seeking a continuance of the trial date or filing a stipulation to continue trial after meeting and conferring with Defendants.

Moving party to give notice.